

MUTUAL CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

This Mutual Confidentiality and Non-Disclosure Agreement ("**Agreement**") is made as of March 27 2026 (the "**Effective Date**") by and between [REDACTED], with a registered address at [REDACTED] and [REDACTED], University of Auckland, New Zealand (each a "**Party**" and together the "**Parties**").

In connection with a possible business relationship between the Parties, either Party may disclose to the other, either orally, in writing or by inspection, information concerning their respective experiences, businesses, products, services or financial condition that would be helpful in evaluating and entering into a potential business relationship (the "**Purpose**"). In order to induce this disclosure, each Party agrees that the information furnished to it will be received under the terms of this Agreement and used solely for the Purpose.

1. As used in this Agreement, the term "**Confidential Information**" includes all information furnished by or on behalf of a Party (the "**Disclosing Party**"), its Affiliates, or any of their respective officers, directors, employees, agents, accountants, attorneys or other professional advisors (collectively "**Representatives**") to the other Party (the "**Receiving Party**") or its Representatives, whether furnished before, or after the Effective Date and furnished in any form. Confidential Information includes but is not limited to written, verbal, visual, electronic or in any other media or manner, and shall include that acquired by observation or otherwise during any site visit at the Disclosing Party's facility. Confidential Information includes all proprietary technologies, know-how, trade secrets, discoveries, inventions and any other intellectual property (whether or not patented), analyses, compilations, business or technical information and other materials prepared by the Disclosing Party or any of its Representatives, containing or based in whole or in part on any such information furnished by the Disclosing Party or its Representatives,
2. Confidential Information does not include, however, information concerning a Party which (A) is or becomes generally available to the public or within the industry to which such information relates other than as a result of a breach of this Agreement; provided, however, that the fact that such Confidential Information may be the subject of an unpublished patent application, copyright or other limited disclosure required by a government entity shall not cause it to be within an exception hereunder, (B) is already known by the Receiving Party at the time of disclosure as evidenced by the Receiving Party's written records, (C) becomes available to the Receiving Party on a non-confidential basis from a source that is entitled to disclose it on a non-confidential basis, or (D) was or is independently developed by or for the Receiving Party without reference to the Disclosing Party's Confidential Information, as evidenced by the Receiving Party's written records.

3. Each Receiving Party agrees that it will not disclose Confidential Information of the Disclosing Party to any third Party or use Confidential Information of the Disclosing Party except for the Purpose, without the prior written consent of such Disclosing Party, except as required by law or regulation; provided, however that prior to making any such legally required disclosure, the Receiving Party shall give the Disclosing Party as much prior notice of the requirement for and contents of such disclosure is practicable under the circumstances. Notwithstanding the foregoing, each Receiving Party may disclose Confidential Information of the Disclosing Party to any of the Receiving Party's Representatives who (A) need to know such Confidential Information for the Purpose, (B) are advised of the contents of this Agreement, and (C) are bound to the Receiving Party by obligations of confidentiality at least as restrictive as the terms of this Agreement.
4. The disclosure of Confidential Information under this Agreement does not obligate the parties to enter into any further agreement relating to a business relationship between them. If either Party terminates discussions concerning the Purpose for any reason, each Receiving Party will promptly either destroy or deliver to the Disclosing Party, without keeping copies, all Confidential Information obtained from the Disclosing Party.
5. The Receiving Party agrees that the Disclosing Party is and shall remain the exclusive owner of the Confidential Information and all patent, copyright, trade secret, trademark and other intellectual property rights therein. No license or conveyance of any such rights to the Receiving Party is granted or implied under this Agreement.
6. This Agreement is considered a contract made under the laws of [REDACTED], and for all purposes this Agreement and any related documents and notices will be interpreted and governed by the laws of Iceland, excluding its conflicts of law provisions. Any disputes arising out of this Agreement shall be first attempted to be resolved mutually between the Parties, failing which, such dispute shall be finally referred to arbitration to be conducted by Nordic Arbitration Centre of the Iceland Chamber of Commerce (Icelandic: Gerðardómur Viðskiptaráðs Íslands) in accordance with its arbitration rules (Iceland Rules) in force on the date when the notice of arbitration is submitted in accordance with these rules. The arbitration shall be held in Reykjavik and shall be conducted in English by one arbitrator, appointed by both the Parties or in accordance with the said rules. The decision of such arbitrator shall be in writing, final and binding on the Parties and judgment thereon may be enforced in any court of competent jurisdiction. This clause, along with the Arbitration Rules, shall be considered an arbitration agreement between the Parties. This Agreement does not prevent either Party from seeking injunctive relief.

7. This Agreement will terminate as to the further exchange of Confidential Information immediately upon the earlier of (A) 30 days written notice from one Party to the other Party, or (B) 5 years following the Effective Date. Notwithstanding the foregoing, each Party's obligations of confidentiality and non-use shall continue for an indefinite period from the date of disclosure of the Confidential Information.
8. Upon the termination of this Agreement, each Party will ensure that all documents, memoranda, notes and other writings or electronic records prepared by it that include or reflect any Confidential Information are returned or destroyed as directed by disclosing Party and confirm such destruction in writing.
9. Neither Party makes any representations or warranties as to the accuracy or completeness of the Confidential Information, and neither Party shall have any liability to the other resulting from any use of the Confidential Information which is consistent with the Purpose.
10. This Agreement will be binding upon, inure to the benefit of, and be enforceable by and against the successors and assigns of each Party, without impairing any other provision hereof, each Party hereto will promptly advise the other of any breaches of this Agreement. [REDACTED] and [REDACTED] each agree to be responsible for any breach of this agreement by its Representatives.
11. For purposes of this Agreement, "**Affiliate(s)**" means, with respect to [REDACTED], any corporation, firm, partnership or other entity controlled by [REDACTED]. For purposes of this definition, "control" shall mean the ownership of at least fifty percent (50%) of the voting share capital of entity or any other comparable equity or ownership interest.
12. The Parties shall comply with all the data privacy related requirements prescribed by applicable laws and implement administrative, physical and technical safeguards to protect personal/sensitive personal information that are no less rigorous than accepted industry practices.
13. Any amendment, modification or waiver of this Agreement or any of its terms must be agreed to in writing signed by both parties. This Agreement sets forth the entire agreement and understanding of the parties relating to the subject matter contained in it and shall supersede any previous confidentiality agreements relating to the Purpose. This Agreement may be executed in one or more counterparts, each of which will be deemed an original but all of which will constitute one and the same Agreement. Any photocopy, facsimile or electronic reproduction of the executed Agreement shall constitute an original.

The parties have caused this Agreement to be signed by their duly authorized representatives as of the Effective Date.

[REDACTED], professor, University of Auckland

[REDACTED], CEO on behalf of [REDACTED]